

24PSCV03501 24PSCV03501

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Case Number: 24PSCV03501 Hearing Date: September 22, 2026 Dept: O

Tentative

Ruling

(1)

PLAINTIFFS' NOTICE OF MOTION AND MOTION FOR ORDER TO COMPEL RESPONSES TO FORM INTERROGATORIES, SET TWO, FROM DEFENDANT ART GUADALAJARA; MEMROANDUM OF POINTS AND AUTHORITIES IN SUPPORT; REQUEST FOR MONETARY SANCTIONS AGAINST DEFENDANTS AND DEFENDANTS' COUNSEL OF RECORD, GORDON REES SCULLY & MANSUKHANI IN THE AMOUNT OF \$ 2,810.00 is DENIED.

(2) PLAINTIFFS' MOTION FOR ORDER TO COMPEL RESPONSES TO REQUEST FOR ADMISSIONS, SET TWO; MEMORANDUM OF POINTS AND AUTHORITIES IN SUPPORT; REQUEST FOR MONETARY SANCTIONS AGAINST DEFENDANTS AND DEFENDANTS' COUNSEL OF RECORD, GORDON REES SCULLY & MANSUKHANI IN THE AMOUNT OF \$ 3,910.00 is DENIED.

The court imposes sanctions against

Plaintiffs and Plaintiffs' counsel in Defendants' requested \$2,100.00 payable to defense counsel within twenty days of this hearing.

Background

This

case arises from a car accident that happened on January 16, 2023.

On

October 17, 2024, Plaintiffs WILLIAM TORRES, an individual; LYNN MENDEZ, an

individual; and MATEO

TORRES,

an individual, by and through his Guardian ad Litem, WILLIAM TORRES filed suit against Defendants ART GUADALAJARA, an individual and GENESIS FLOOR COVERING INC. ("Genesis") for Negligence.

On

January 17, 2025, Genesis filed its answer and that same day filed a cross-complaint (CC) against Plaintiff William Torres for (1) Indemnification and (2) Apportionment of Fault.

On

March 3, 2025, Defendant Guadalajara filed his answer. (The caption states it is the answer of Genesis.)

On

May 5, 2025, Plaintiff Torres filed his answer to the CC.

On

February 11, 2026, the parties attended an IDC. The court allowed Defendant to file their motions.

On

June 8, 2026, the instant motion was filed.

On

June 24, 2026, the court issued an order indicating that the IDC is taken off calendar and plaintiffs may file their motions. On June 26, 2026, the instant FROGs motion was filed.

On

September 8, 2026, Defendant filed his opposition to the FROGs motion, with a request for sanctions.

On

September 16, 2026, the court held its hearing on the motion for a protective order. Defense Counsel stated that good cause was set forth in the (untimely) reply. The court continued the matter at the request of Defense Counsel over the objection of Plaintiffs' counsel. Thereafter, having reviewed the reply,

the court determined it did not set forth good cause such that the court adhered to its tentative ruling to deny the motion.

Discussion

At

the outset, though two motions are on calendar—one RFA and one FROGS motion—relief under Form Interrogatory No. 17.1 depends on the outcome of the challenged RFAs. Thus, the court will provide a consolidated analysis. For reasons to be explained below, the court denies both motions and imposes sanctions against Plaintiffs and their counsel.

Plaintiffs

bring forth the motion “on the grounds that Defendant served objection-only responses Form Interrogatory No. 17.1 concerning [three] RFAs....” (Motion p. 2:11-15.) More specifically, RFA No. 19 asks Defendant to admit that his cellular telephone carrier at the time of the collision was Boost Mobile; RFA No. 20 asks Defendant to admit that he has not produced cellular telephone records; and RFA No. 21 asks Defendant to admit that he refused to sign the written consent form authorizing release of Boost Mobile records for the date of the collision. “Plaintiffs also served Form Interrogatory No. 17.1, which required Defendant to identify, for each response that was not an unqualified admission, the facts, witnesses, and documents supporting his response.” (Motion p. 4:9-13.) As set forth in the motion, on May 5, 2026, Defendant served objection-only responses to RFAs Nos. 19 through 21 i.e., Defendant did not admit, deny, or state that he lacked sufficient information to admit or deny after reasonable inquiry;^[1] Defendant then refused to answer FROG No. 17.1 on the ground that it is derivative of the RFAs 19-21.

In

opposition, Defendant advances a variety of arguments but it boils down to the following: Defendants did respond to the Set One propounded in March 2025 such that the Set Two discovery requests are objectionable because were propounded in an impermissible attempt to reset the clock on their expired deadline to file a motion to compel further responses for the Set One requests.^[2]

After all, the rule is that a party is prohibited from repeated propounding of the same discovery request after the 45-day period in which a motion to compel may be made has lapsed. (Opp. pp. 11-12, citing Professional Career Colleges

v. Superior Court (1989) 207 Cal.3d 490.) As for the remainder, the court is also unaware of any published California decision approving an RFA that asks a party to admit or deny its own failure to comply with earlier discovery in the same case. (Opp. p. 13.) Plus, the three RFAs do not pertain to matters that are in controversy in this case/nor intended to lead to the discovery of admissible evidence (i.e., do not go towards negligence/liability).

The court agrees. In fact, the motion and the Separate Statement acknowledge that on May 27, 2025, Defendant provided the identity of Defendant's mobile carrier. On January 20, 2026, upon learning from Boost Mobile that the requested cellular records did not exist, Defendant produced a Further Response with that information. (Opp. p. 8.) As laid out by Defendant, the three April 2, 2026 RFAs Set Two were served in response to Defendant refusing to sign a broad authorization of the release of the cellphone records.

Though many arguments have been raised in opposition, to date, as of Monday, 9/21, no reply has been received (due 5 court days before the hearing). With that, showing the meritorious nature of the motion, the court awards Defendants' request for sanctions against Plaintiffs and their counsel in the amount of \$2,100.00 payable to defense counsel within twenty days of this hearing.[3]

Conclusion

Based on the foregoing, both motions are denied.

[1] See Separate Statement e.g., No. 19 ["Responding Party objects to this Request on the following grounds: It is vague, ambiguous and overbroad; It is burdensome, oppressive and unduly repetitive because the same request, which was intended to elicit the same response, was previously propounded as Special Interrogatory No. 61 on March 4, 2025."]

[2] On May 27, 2025, Defendant provided the identity of Defendant's mobile carrier. On January 20, 2026, upon learning from Boost Mobile that the requested cellular records did not exist, Defendant produced a Further Response with that information. (Opp.

p. 8.) That leads to a query by the court. Even after learning that cellular records do not exist because Defendant had a pre-paid cellular phone plan for which Boost Mobile does not maintain the records, Defendants were amenable to some sort of authorization form that was proposed by Plaintiffs. But if Boost Mobile did not have any records, it is unclear how Defendants were amenable to any sort of limited disclosure. As set forth in the opposition, on February 23, 2026, Defendant stated they would consider signing an authorization "provided that it was narrowly limited to the period beginning 30 minutes before and ending 30 minutes after the subject incident." (Opp. p. 8.)

[3] Utilizing the Lodestar approach and considering the totality of the circumstances, Counsel Velilla's expenditure of 6 hours preparing the opposition (which is lengthy and supported by authority) at \$350/hour is wholly reasonable.